

The complaint

Mrs L is unhappy that Royal & Sun Alliance Insurance Plc (RSA) declined a claim under her caravan insurance policy for storm damage and with the way it handled the claim.

What happened

In November 2019 Mrs L made a claim to RSA for storm damage to her caravan.

RSA asked her to provide photos of the damage and estimates for repairs. Mrs L asked the site owner to obtain these on her behalf. RSA said it received the estimates on 20 February 2020 and spoke to one of the repairers a few days later about the cause of the damage. It declined the claim. It thought the roof seals had failed and said that wasn't covered by the policy. It said there was no visible storm damage to the caravan.

Following a complaint by Mrs L, RSA appointed its caravan specialist to inspect the damage. The inspection was carried out in early March. That specialist said the seals were failing due to a design fault. RSA continued to decline the claim.

Mrs L brought her complaint to this service. Our investigator didn't uphold it. She didn't think RSA had treated Mrs L unfairly. As Mrs L didn't agree, the matter has been referred to me.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

When considering a storm complaint, I generally take into consideration the following questions:

- were there storm conditions on or around the date the problem occurred?
- is the nature of the damage claimed for consistent with the storm damage?
- were the prevailing storm conditions the main cause of the problem?

If the answer to any of these is "no", the complaint is likely to fail.

RSA hasn't disputed that there were storm conditions around the time that the damage occurred. I understand that there were high winds in the local area around the relevant time.

Regarding the second question, there was no evidence of damage such as roof panels having been lifted or broken which might be typical of storm damage.

In deciding whether the storm was the main cause of the damage, I usually rely on expert evidence. In this case three repairers assessed the damage. They all quoted for similar work to include the removal of the roof ridge, resealing the bolt holes and in two of the three quotes replacing the bolts. One of the first two repairers told RSA the seals had failed due to general weathering. RSA's third repairer initially suggested the damage could have been caused by a storm or a design fault. But it later changed its view and said since there

was no visible storm damage to the roof, they thought water was getting in because of a design fault.

Mrs L told RSA that if the damage had been due to a failed seal or design fault, she'd expect to see more water getting in but this hadn't been the case. However, I note that according to RSA's file the site owner dealing with the quotes on Mrs L's behalf told RSA in December 2019 and the following March that the water damage was getting worse.

RSA was entitled to rely on the cause of damage referred to in the three quotes to decline Mrs L's claim and I don't think that it was unreasonable for it to do so. I don't think she has thrown sufficient doubt on these conclusions to make me think that RSA should change its position. In my opinion RSA has shown it's more likely than not that a storm wasn't the main cause of the damage. My conclusion is that RSA's decision not to settle Mrs L's claim for storm damage was fair and reasonable.

I've also looked at how RSA handled Mrs L's claim. I can see it took the site owner about three months to provide repair estimates. But RSA did say to let it know if there was a problem with getting the quotes as it might be able to get an alternative quote. So I don't think it was at fault for the delays with the claim. I also haven't seen any evidence that RSA pressured its contractor into changing its decision as to the cause of the damage.

My final decision

I do not uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs L to accept or reject my decision before 8 June 2021.

Elizabeth Grant
Ombudsman